

21STLC01780 21STLC01780

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-14

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Case Number: 21STLC01780 Hearing Date: July 14, 2026 Dept: 731

[TENTATIVE] ORDER RE: CROSS-DEFENDANT'S MOTION FOR SUMMARY JUDGMENT Dept. 731 9:30 a.m. July 14, 2026

Moving Party: Cross-Defendant, Robert Bare dba BARE LAW.

Opposing Party: Cross-Complainant, Michellei Cephus.

Notice: OK.

1. Background Facts

Plaintiff/Cross-Defendant Robert Bare d/b/a BARE LAW ("Cross-Defendant") sues Defendant/Cross-Complainant Michellei Cephus ("Cross-Complainant") pursuant to a February 4, 2021, Complaint alleging a single cause of action for breach of contract arising from allegations that Cross-Complainant failed to pay for legal services rendered and owes Cross-Defendant \$3,475 in fees.

In turn, Cross-Defendant sues Cross-Complainant pursuant to a November 3, 2023, First Amended Cross-Complaint ("FAXC") alleging claims of legal malpractice, breach of contract, and breach of fiduciary duty related to the services alleged to have been rendered in Cross-Defendant's Complaint.

Before the Court is Cross-Defendant's April 20, 2026, motion for summary judgment against the claims alleged in the FAXC. Cross-Complainant filed an opposition on June 22, 2026, and Cross-Defendant filed a reply on July 7, 2026.

2. Motion for Summary Judgment: DENIED

a. Legal Standard

i. Summary Judgment – Generally

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd.

(c.)

ii. Summary Judgment – Timeliness

Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days. (Code Civ. Proc., § 437c, subd. (a)(2).)

iii. In Pro Per Consent to Electronic Service

A person appearing in propria persona (self-represented) in California can voluntarily waive the protection afforded by the consent requirement in California Rules of Court, rule 2.251(b) only by

affirmatively consenting to electronic service through the specific mechanisms prescribed by the rule and its enabling statute.

Specifically, a person appearing in propria persona must either: (A) serve a notice on all parties and other persons that the party accepts electronic service and file the notice with the court, which must include the electronic service address at which the party agrees to accept service; or (B) manifest affirmative consent through electronic means with the court or the court's electronic filing service provider (EFSP), and concurrently provide the party's electronic service address for the purpose of receiving electronic service, which may be manifested by serving notice of consent to all parties and either agreeing to the terms of service with an EFSP that clearly states that agreement constitutes consent to receive electronic service, or by filing Judicial Council Form EFS-005-CV (Consent to Electronic Service and Notice of Electronic Service Address). (California Rules of Court, rules 2.251(b)-(b)(1)(B)(iii), 2.251(c)(3)(A)-(B) & Advisory Committee Comment, subd. (b)(1)(B).)

b. Discussion

The Court DENIES Cross-Defendant's motion for failure to comply with the requirements imposed on Cross-Defendant by the nexus of Code of Civil Procedure section 437c, subdivision (a)(2), and California Rules of Court, rule 2.251.

Consistent with Plaintiff's opposition arguments, here, there exists no record before the Court to show that Plaintiff has expressly consented to electronic service as contemplated in California Rules of Court, rule 2.251.

Cross-Defendant's reply implicitly recognizes this fact by arguing that the 'electronic consent' requirement in rule 2.251 should effectively be waived because Cross-Complainant (1) acknowledged notice of this motion in her opposition, (2) still filed an opposition on the merits, and (3) the parties have historically served documents electronically. (Reply, pp. 2-3.)

As far as waiver, the Court disagrees that waiver of rule 2.251 can occur. The rule is clear: among others, "self-represented parties" "are to be served by non-electronic methods unless they

affirmatively consent to electronic service," and part of that affirmative consent must take the form of a court filing by the self-represented litigation confirming such consent (California Rules of Court, rules 2.251(b)-(b)(1)(B)(iii), 2.251(c)(3)(A)-(B)), where no such filing appears in the record for this action.

Consequently, the motion before the Court had to be served by Cross-Defendant on Cross-Complainant by other authorized means, consistent with California Rules of Court, rule (c)(3)(B). Yet, the proof of service for Cross-Defendant's motion shows only service via email. (4/24/26 Proof of Service.) Consequently, no service in conformity with Code of Civil Procedure section 473(c), subdivision (a)(2), has taken place, and Cross-Defendant's motion must accordingly fail.

c. Conclusion

Cross-Defendant Robert Bare dba BARE LAW's motion for summary judgment is DENIED.

Cross-Defendant Robert Bare dba BARE LAW is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 14, 2026 _____

MARK C. KIM

Judge of the Superior Court